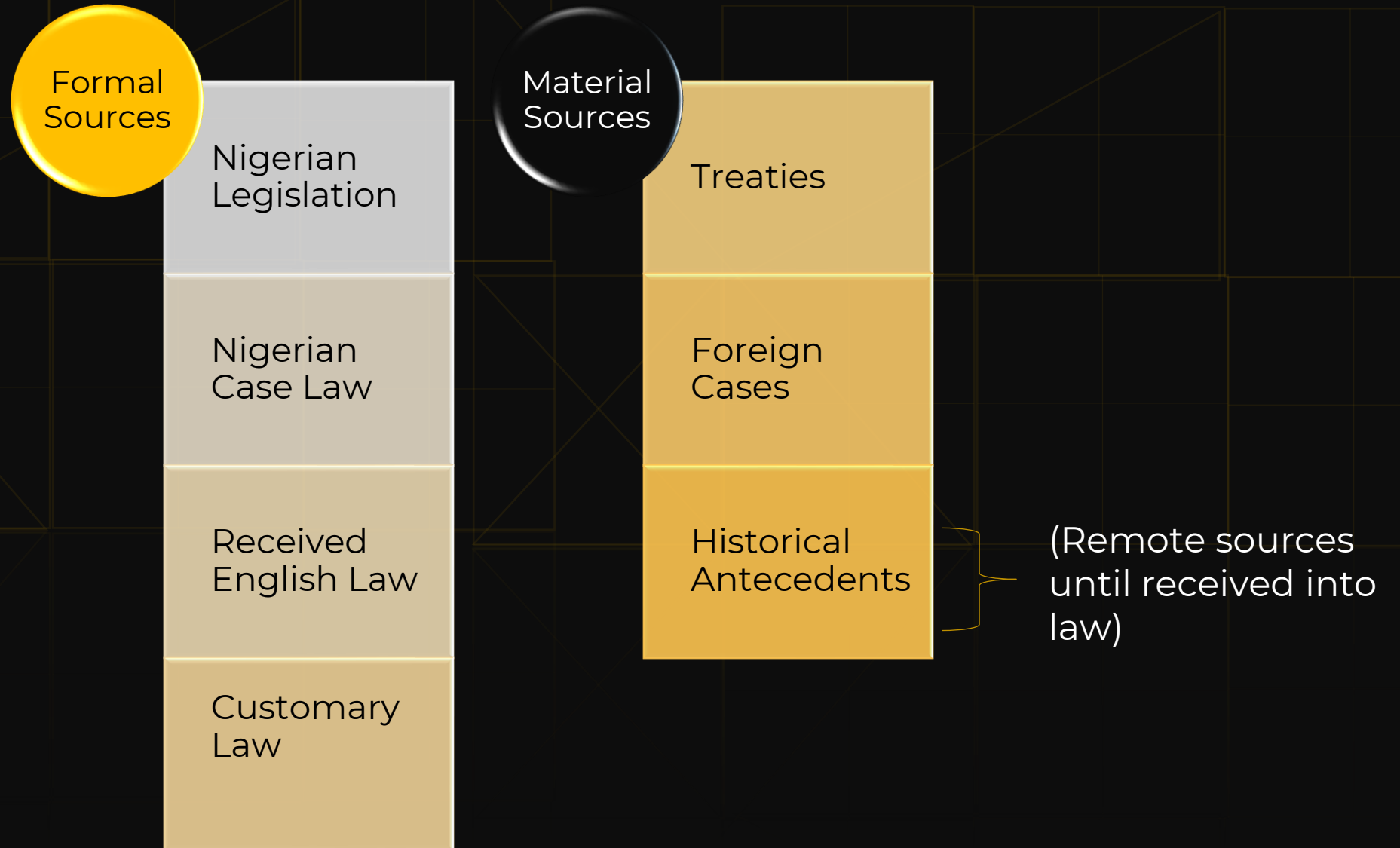


Sources of Nigerian Law

A bronze statue of Lady Justice, blindfolded and holding scales of justice in her left hand and a sword in her right hand. The statue is positioned in the background, slightly to the right, and is partially obscured by the text. The background is a dark, solid color.

THE DERIVATION OF LEGAL AUTHORITY



FORMAL SOURCES

The formal or real sources, are those which are binding in themselves (binding the way they stand). They supply the force and validity of law.

MATERIAL SOURCES

They supply the material from which rules are moulded, but not the immediate validity.

- For example, clay is used as material for moulding pots but does not give the pot its usefulness("validity")



LEGAL SOURCES

1. English Law :

- ✓ Common Law
- ✓ Equity
- ✓ Statutes of general application



Nigerian Legislation

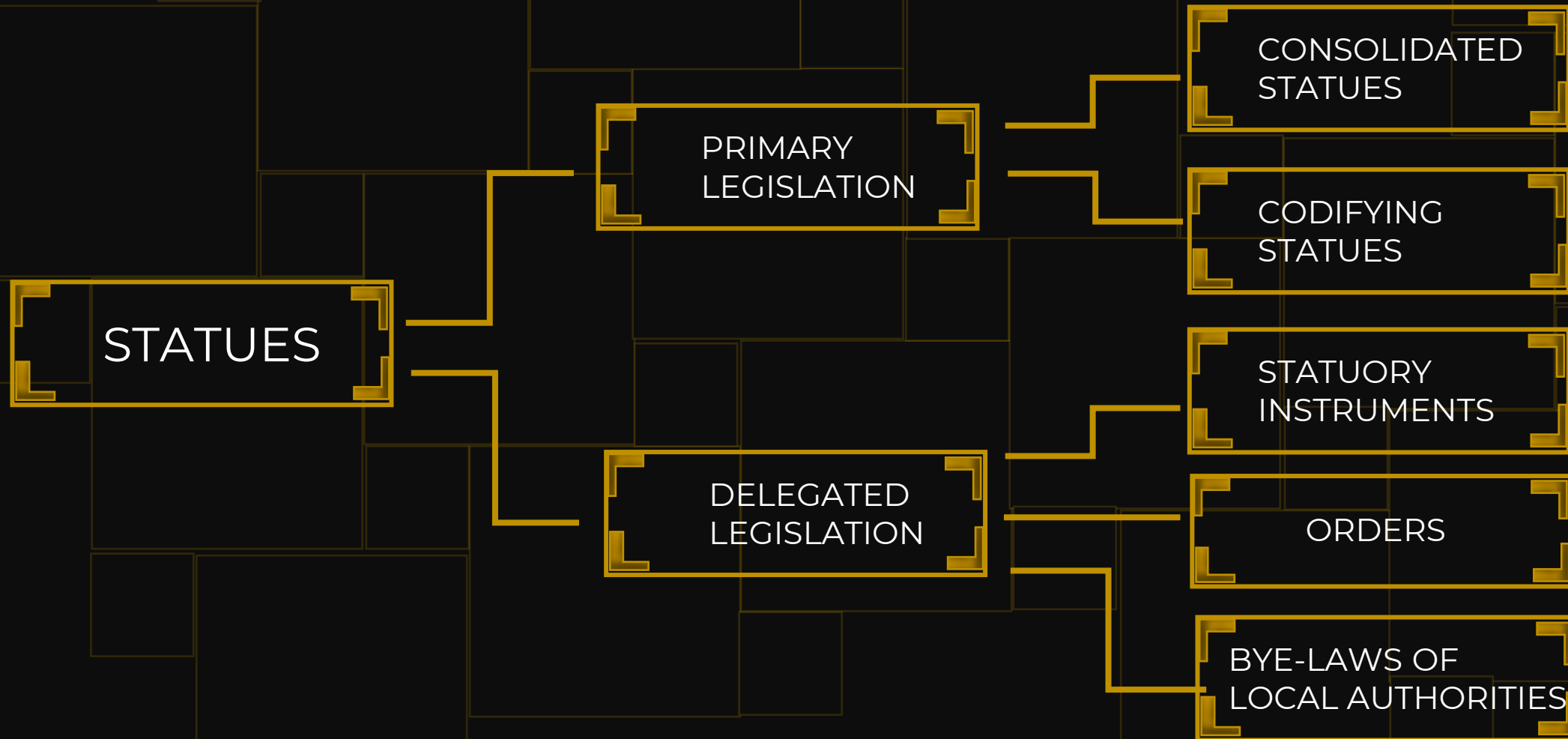


Nigerian Case Law



Customary Law

LEGISLATION OR STATUES



WHY DELEGATE?



Lack Of
Parliamentary
Time



Need for
Technical Expertise



Flexibility
to amend rapidly



Local matters
Requiring
Local consultation

STRUCTURAL COMPARISON: STATUTE VS. CASE LAW

	STATUTE	CASE LAW
ORIGIN	Express and formal laid down rules by Parliament	Judgements built up through continuous legal practice and litigation.
TEMPORAL FOCUS	Proactive: Lays down general rules for future conduct.	Reactive: Applies existing rules to a past set of circumstances.
STATUS	Enacted law.	Un-enacted law.
OVERRIDE POWER	Absolute: Can expressly or impliedly repeal prior law.	Subordinate: Cannot override legislation

INTEPRETATION OF STATUES: STARE DECISIS

DEFINITION: Stare decisis(stand by the decision): A fundamental principle that ensures that like cases by decided alike.

PURPOSE:

Ensures certainty, uniformity, and fairness in the application of the law.
Protects from arbitrary judicial decisions.

BINDING ON LOWER COURTS:

The lower court is not at liberty to refuse to follow of the higher court because it was given “per incuriam”(in ignorance of a statue or rule).

CONFLICT RESOLUTION RULE:

When a lower court is face with two conflicting decisions of the higher court, it follows the one that is latter in time.

PRINCIPLES OF CASE LAW

WHAT IS CASE LAW?

Case law is a body of law built up through authoritative and binding decisions known as precedents.

OBITER DICTUM?

A statement of law made by the way in a judgement which is not relevant to the issue before the court

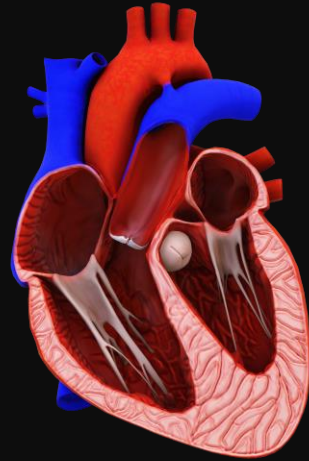
RATIO DECIDENDI?

The enunciation of a reason or principle on which a question before the court has been decided. (*Ajibola v Ajadi*)

THE ANATOMY OF RATIO DECIDENDI *("The Heartbeat of cases")*

RATIO DECIDENDI?

The material facts of the case combined with the legal principle decided on those facts. This is the absolute core of the judgment and is the only part that is authoritatively binding on subsequent cases.



WHY PRECEDENTS?

1. To correct imperfections of lower courts
2. Measure of certainty in administration of law
3. Creates public confidence in the judiciary
4. Makes the law to be scientific in nature

What is ratio decidendi?

1. The Principle of law upon which a particular case is decided.
2. Is based on the finding of fact on a general legal principle.
3. Ratio decidendi is not a remark of the judge.

CLASSIFICATIONS OF PRECEDENT.

- A precedent that establishes a new rule of law that is not already in existence.

Original
Precedent



- A precedent that extends the existing rule not covered by the original precedent.

Derivative
Precedent



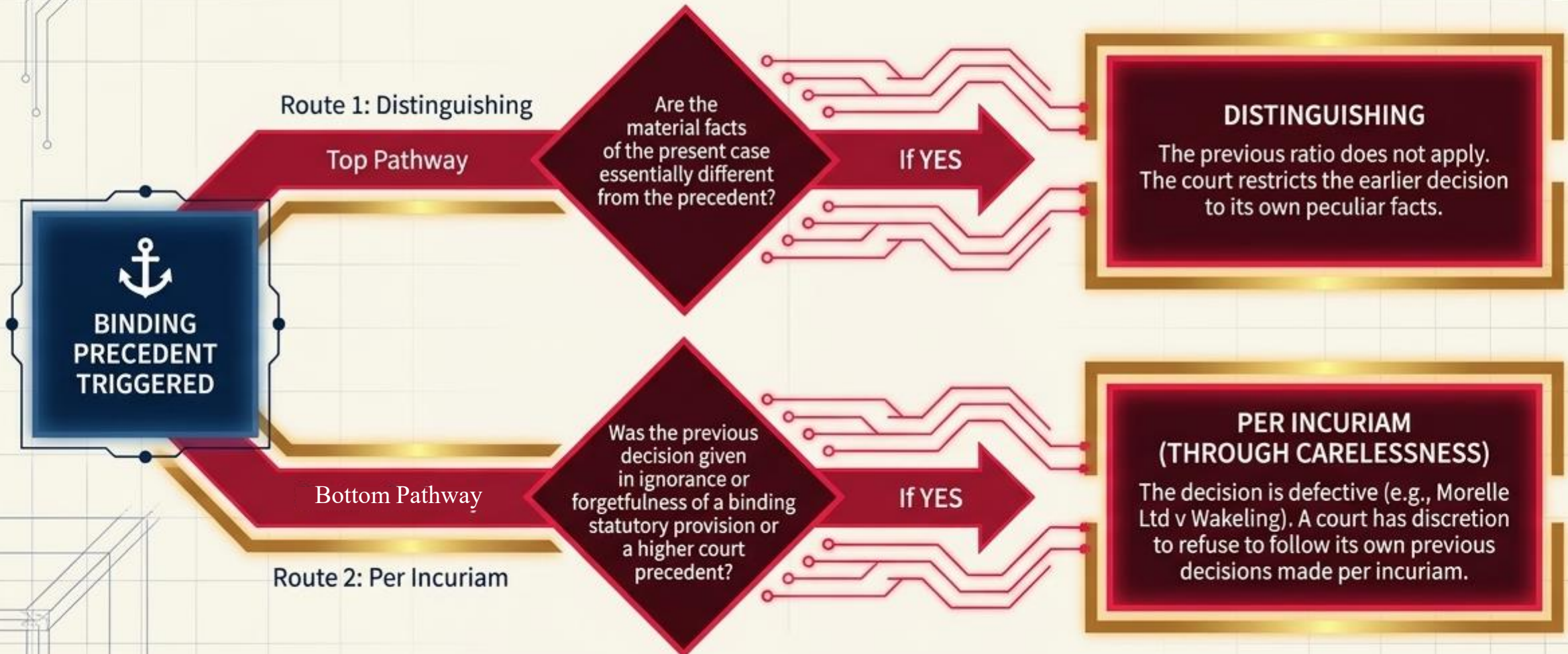
- A precedent that merely declare existing rules. They give weight to the existing rules.

Declaratory
Precedent.



Exceptional Bypass: Departing from Precedent

When can a court legally refuse to follow an established decision?



The Foundation: Received English Law

Carried over from colonial rule, received English law supplies Common Law principles, Equity doctrines, and Statutes of General Application that apply where Nigerian law is silent.

Common Law

Judge-made rules filling gaps in local statute.

Equity

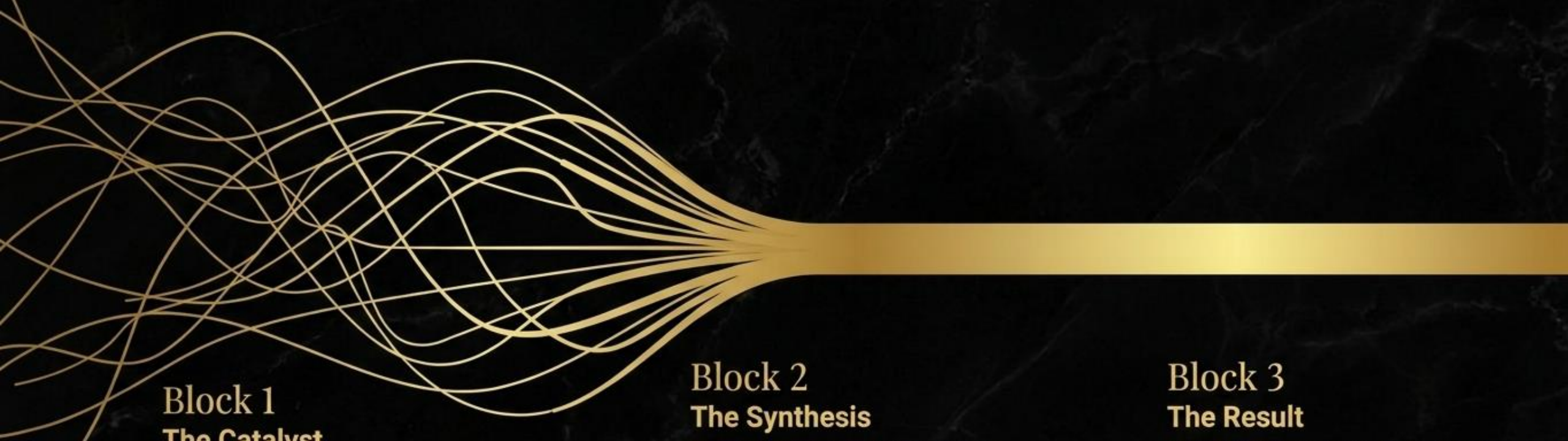
Fairness-driven remedies (injunctions, trusts).

Statutes of General Application

English statutes adopted into local law where applicable.



Forging the Common Law: The Pursuit of Uniformity



Block 1 The Catalyst

Prior to the Norman Conquest, English law was heavily fragmented by region. The centralisation process began by dispatching itinerant judges (travelling justices) to various local jurisdictions.

Block 2 The Synthesis

These judges returned to a central hub in London to discuss and compare their varied experiences, deliberately filtering and combining disparate local customs.

Block 3 The Result

A uniform, judge-made body of law was successfully developed and applied equally across the realm—a law that was truly 'common' to all.

The Architecture of Common Law

Judge-Made, Not Codified

It is a creation of the judges, discovered in past precedents rather than dictated by a single, comprehensive legal code.

Extreme Rigidity

Governed by highly technical rules extracted from custom. The system frequently elevates procedural form over substantive justice.

The Writ System

Litigation required a specific writ (a sealed letter from the King). If an action did not precisely fit an existing writ's framework, the court could not hear the case.

Because of this extreme rigidity, the Common Law routinely threw out cases on technicalities. If a claimant's grievance fell outside existing precedent, they were left completely without a legal remedy.

The Crisis of the Writ & The Petition for Mercy



Where there was no explicit Common Law writ, there was no remedy. Monetary compensation (damages) was the primary and often only remedy available, which frequently failed to adequately address the actual injury.

Litigants who could not obtain justice under the rigid strictures of the Common Law made direct, desperate appeals to the King through his chief secretary, the Chancellor.

The Chancellor, an ecclesiastic often referred to as the 'Keeper of the King's Conscience,' was uniquely authorised to treat these petitions on moral grounds rather than strict legal technicality

The Emergence of Equity

The Court of Chancery

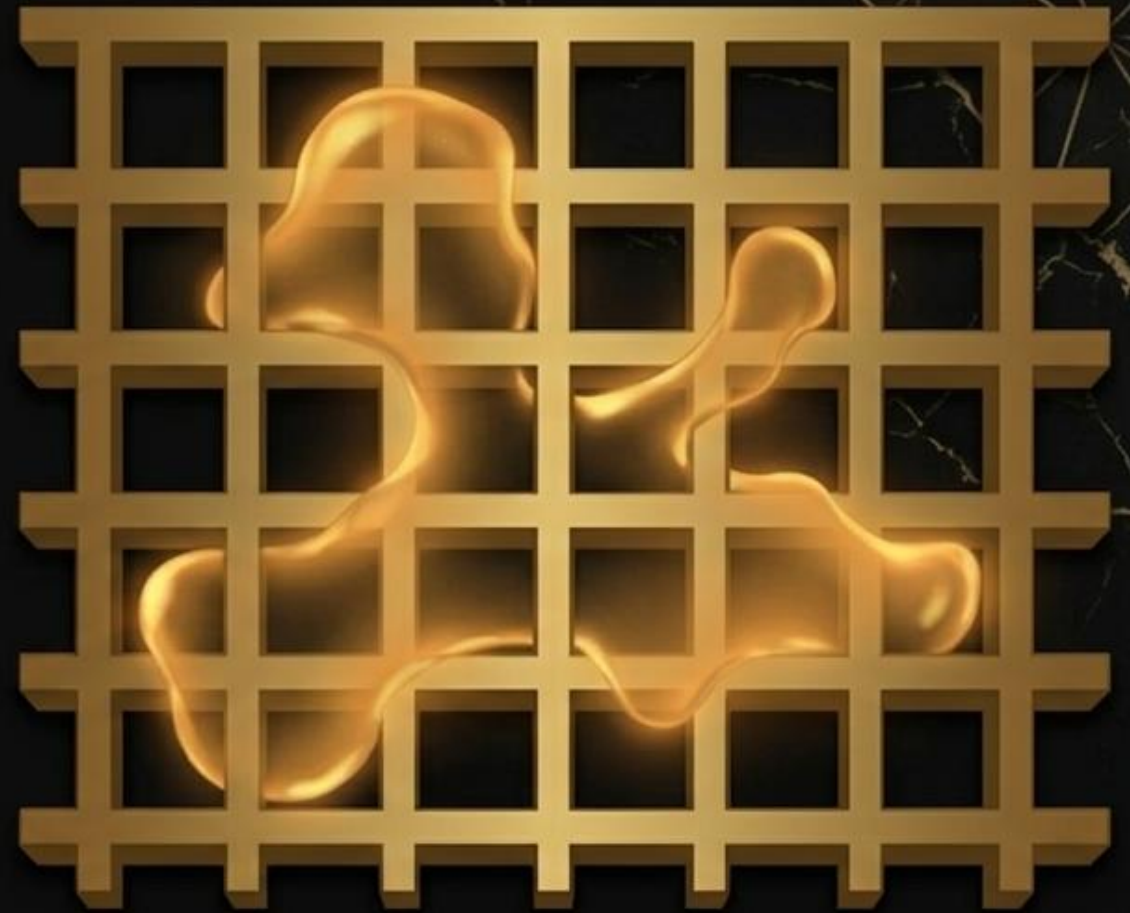
As the volume of direct petitions to the King grew uncontrollably, the Chancellor's jurisdiction was formalised into a completely separate legal forum: **The Court of Chancery.**

The Meaning of Equity

In a wider sense, equity means what is fair, just, moral, and ethical. Legally, it represents the specific body of rules developed explicitly to mitigate the harsh severity of the Common Law.

Conscience over Form

Judgments in Chancery were delivered based on natural moral law, standing in stark contrast to the rigid, highly technical civil law administered by the Common Law courts.



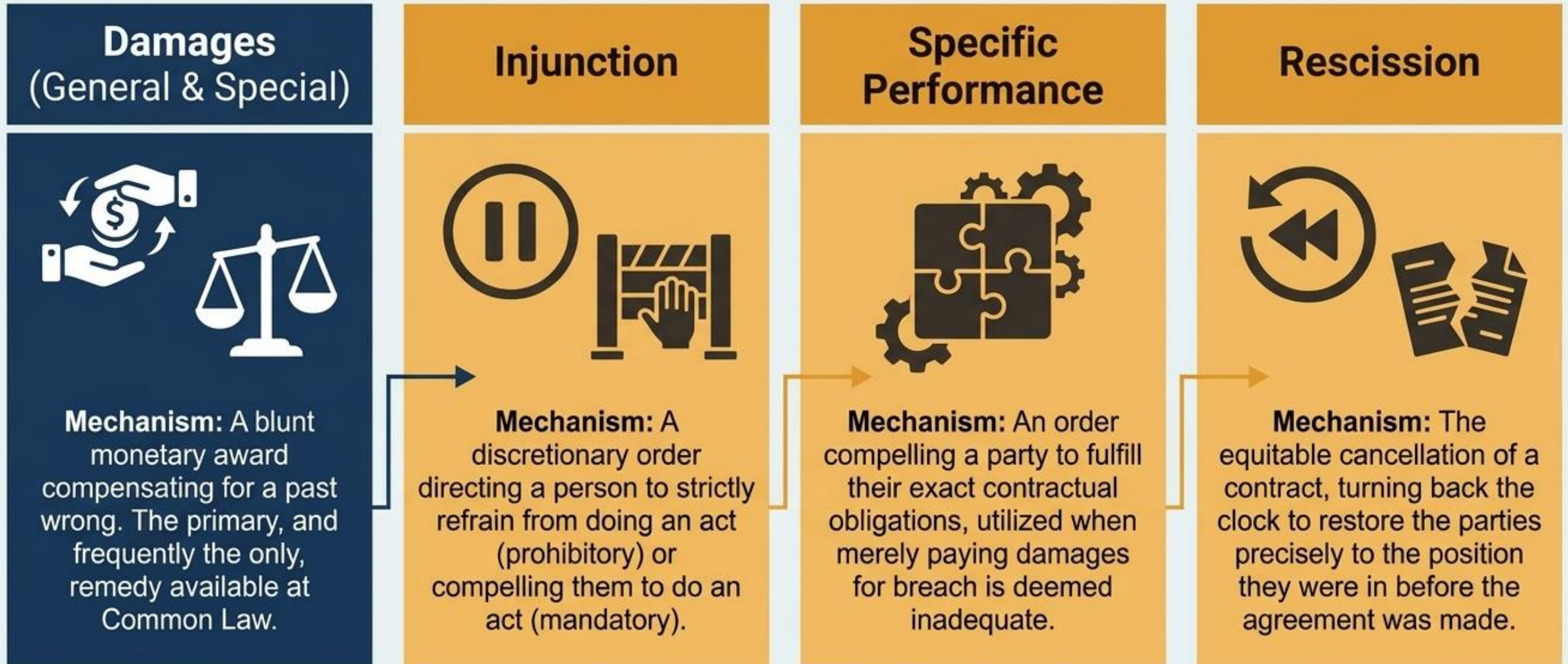
Equity was never designed to destroy the Common Law, but to rescue it. It provided discretionary justice in circumstances where the strict Common Law fell drastically short.

Two Systems of Justice: A Diagnostic Comparison

	The Common Law	Doctrines of Equity
Origin	Distilled from regional customs by itinerant judges over centuries.	Born from direct petitions to the King's Conscience and the Chancellor.
Nature	Rigid, highly technical, and heavily reliant on strict procedural forms (the writ system).	Discretionary and fluid. Not a comprehensive code, but a supplementary system of rules.
Entitlement	Remedies are available as of right (if the rigid rule applies, the remedy must be granted).	Remedies are completely discretionary (the judge decides if granting relief is fair and just in the specific circumstance).
Focus	Elevates Form over Substance.	Elevates Substance over Form.

The Toolkits:

Legal Damages vs. Equitable Remedies



MAXIMS OF EQUITY

Equity will not suffer a wrong to be without a remedy.

Delay defeats equity

Equity aids the vigilant and not the indolent

Equity follows the law

Equality is equity

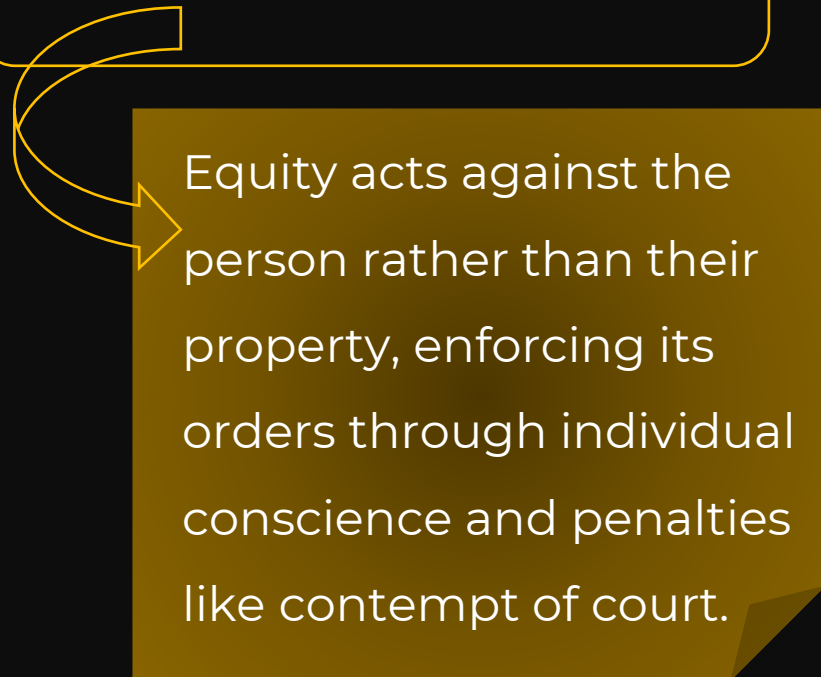
Equity acts *in personam*

He who comes to equity must come with clean hands

Where there is equal equity, the law shall prevail

Equity looks on that which ought to be done as done

Where there is equal equities, the first in time prevails



Equity acts against the person rather than their property, enforcing its orders through individual conscience and penalties like contempt of court.



Indigenous Roots: Customary Law

Customary law stems from the traditions and practices of Nigeria's many ethnic groups. It governs personal law areas — marriage, inheritance, land tenure — where it is consistent with natural justice and statutory limits.



Customary rules must not be "repugnant to natural justice, equity and good conscience" or inconsistent with statute.